THE STATE
versus
FANUEL MASORA

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE: 2,3,11,24 February & 4 March 2026

Assessors: Mr Shenje and Mr Mutombwa

Criminal Trial

Mrs *K Chigwedere*, for the state
Mr *O Shava & Mr O Chitovamombe*, for the defence

Introduction

The accused is a male adult who is charged with the murder of Magijo Masora as defined in s 47 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

It is alleged that on 5 January 2014 and at 1191 Eastview Phase 4, the accused unlawfully and with intent to kill or realizing the possibility that his conduct might cause death assaulted Magijo Masora four times on the head with a wheel spanner thereby causing injuries from which the deceased died.

The accused pleaded not guilty to murder and advanced two grounds for this. The first is that he is deaf and mute and his exclusive and sole means of communication is Zimbabwe Sign Language. He cannot read, write or comprehend written or printed English text in any meaningful way and as the Criminal Law Code was not gazetted in sign language, it was not brought to his notice nor that of the entirety of the deaf and mute community. Because of that the Criminal Law Code is not applicable to him and he is therefore not guilty.

The non gazetting of the Criminal Law Code in sign language is said to offend against s 132 of the Constitution which provides that an Act of Parliament takes effect on the date it is published in the Government Gazette or as specified therein.

In the alternative the accused pleaded not guilty to murder but tendered a limited plea of guilty to culpable homicide. His defence is that, the deceased, his uncle provoked him to a

point where he lost self-control and this was heightened by his condition of being unable to hear and speak.

The State Case

The State produced the following exhibits without any objections from the defence:

1. The postmortem report which gives the cause of death as poly trauma to the head and blunt force trauma as exhibit 1.
2. The accused's confirmed warned and cautioned statement – exhibit 2. In it the accused admits to assaulting the deceased 4 times with a wheel spanner on the head whilst he was sleeping, among other things.
3. The wheel spanner as exhibit 3A.
4. The weighing certificate for the wheel spanner showing a weight of 2,2kg as exhibit 3B.

The evidence of the following witnesses was formally admitted in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*]

(i) Tatenda Masora
(ii) Linia Masora
(iii) Duncan Zimbizi
(iv) Doctor Chowe

Tatenda Masora is the accused's brother whom he first told whilst at work around 0630hours about the deceased's death. Tatenda then informed Linia Masora, their cousin whose house was nearby to check for the deceased at his house. She could not find him and soon thereafter the accused came back home and showed her where the deceased's body was. It was in an unfinished house some 17 metres away.

Linia Masora called her husband Duncan Zimbizi. Duncan uncovered the body which was covered in a work suit and they noticed that the deceased was bleeding profusely from the head and had a deep cut on the left side of the chin. Clotted blood was on the floor. The accused explained that he has assaulted the deceased because he was pained in his mind. Tatenda Masora made a police report after visiting the scene around 0715 hours.

Sithabile Jonasi was the investigating officer in this matter. She knows the accused only in connection with this matter. She received the report of murder from Tatenda Masora on 5 January 2026 and went to the scene of crime and met the accused who was speaking in sign language and explained that he had had a misunderstanding with the deceased, his uncle.

Accused wrote on the ground that the time was 2400hrs. The investigating officer could speak in sign language but also got assistance from Linia, the accused's cousin. The accused told the witness that he assaulted the deceased whilst he was asleep on the bed. She observed blood on the bed.

The accused handed over the murder weapon, exhibit 3A. He made indications and showed the investigating officer the unfinished house opposite theirs where he had carried the deceased to. During this time the accused was stable and not angry. She arrested the accused.

The explanation given was that the deceased had provoked the accused by talking too much just before they went to bed.

Where the body was, the witness observed that the body was lying facing upwards. Blood was flowing and also covered the ground.

The investigating officer posited that the accused had no intention to kill the deceased as they were living together and he was remorseful. The provocation must have caused the accused a lot of anger.

Defence Case

The accused was the only witness in his defence.

He was born deaf and mute and his primary mode of communication is sign language. He knows there are laws but does not know how they are made.

He attended Emerald Hill School for the deaf till form 2 level.

The deceased was his uncle whom he was very close to as they lived together, ate together and shared what they had including a bed.

Their misunderstanding arose in respect to accused's former girlfriend, Memory whom he loved and hoped to get married to. They had started off as friends.

In the afternoon preceding the fateful day, the accused, deceased and Memory had met to discuss their challenges. The girl had no hearing and speaking impairments so the uncle was interpreting in sign language. The uncle spent more time speaking to the girl and they were using Shona. He suspected that the uncle was taking his girlfriend for himself. In particular the uncle said that the hearing and the deaf cannot be together. The accused felt excluded, shut out and angry.

In the evening the misunderstanding happened between 10:00pm and 12:00am. Both of them retried to sleep. When both were asleep, the accused got up, torched the deceased and

saw he was sleeping. He picked up the 2,2kg wheel spanner and hit the accused four times on the face continuously.

When the deceased was first hit, he did not do anything. The accused carried him outside to an unfinished house opposite theirs. He wanted him to get fresh air and was hoping to get help but it was just the two of them.

The accused had observed that the deceased's whole face was bleeding, but thinks he did not use severe force. Thereafter the accused cleaned up the blood stains in the house from around 1.00am to 2.00am.

He had then told his relatives in the morning, and a report was made to the police.

The accused insisted that he had not intended to kill his uncle but he had a lot of pain in his heart due to his uncle's hand in the breakup with his girlfriend. When he hit him, he was angry as he persuaded her to hate the deaf.

The accused confirmed that he can read and write as he learnt up to form 2 level.

Common Cause Facts

1. The accused and deceased were nephew and uncle and they lived together.
2. There was a misunderstanding between them in respect to Memory's breakup with the accused. He attributed the breakup to his uncle's influence on the girls to hate the deaf.
3. The misunderstanding had spilled into the night from around 10.00 pm to 12.00 pm during which time the accused felt the uncle was talking too much and this enraged him.
4. They both went to sleep. It was whilst the deceased was asleep that the accused armed himself with a 2.2kgs wheel spanner.
5. He struck the deceased four times on the face after torching his face and confirming he was asleep.
6. Thereafter her carried the body to an unfinished house opposite theirs.
7. He set upon cleaning and washing to remove blood stains.
8. The deceased sustained multiple fractures of the mandible and maxilla, cuts on the left side of the chin, swollen left cheek, buccal mucosa, cerebral oedema, pulmonary oedema.

Death was concluded to have been accused by poly trauma to the head and blunt force trauma.

9. The deceased died as a result of the injuries inflicted by the accused.
10. The accused can read and write

Disputed Facts

The issue which the accused puts into issue is that he had no intention to kill the deceased but was provoked so as to cause a sudden and total loss of self-control. Due to his deafness and inability to speak, he says he exists in a world where visual stimuli and emotional betrayals can be more acute thus explaining his failure to control himself. He therefore rendered a limited plea of guilty to culpable homicide.

Section 239 of the Criminal Law Code provides that provocation may be a partial defence to murder where a provoked person does or omits to do anything resulting in the death of a person shall be guilty of culpable homicide if, as a result of the provocation-

(a) he or she does not have the intention or realization referred to in s 47; or
(b) he or she has the intention or realization referred to in s47 but has completely lost his or her self-control, the provocation being sufficient to make a reasonable person in his or her position and circumstances lose his or her self-control.

In the assessment of whether s 47 (1) (b) is applicable the court noted the need to have evidence from an expert, a psychologist who has experience dealing with the deaf and mute so that we can have an understanding of how a reasonable person in the shoes of the accused would be expected to react when provoked as he was. This was after the State conceded that there was indeed some provocation.

Both counsel were invited for deliberation and they agreed that expert evidence would be necessary in this case. The expert witness called is Professor Lincoln Hlatshwayo. He holds a PHD in inclusive Education, MSC in Special Education, MED in Psychology, BSC in Special Education among a vast of other qualifications. His working experience includes teaching for 10 years at Emerald Hill School for the Deaf. Our assessment was that he was well qualified to assist the court.

In his evidence, Professor Hlatshwayo highlighted that there are a lot of gaps in information dissemination within the speech and hearing-impaired community. This limitation was said to have the psychological effect of limiting the conceptualization of general life issues especially as the families and communities do not learn sign language. This fosters social isolation and discrimination for the deaf and mute person in all spheres of his life. It was his testimony that a 17- to 18-year-old deaf individual has a mental age of an

8- to 9-year-old as most may start grade 1 at the age of 11 years or more. The accused person who is 36 years old was said to possibly have conceptualization of issues similar to that of an 18-year-old. It was his further view that the accused person who is a form 2 graduate has a mental capacity of a grade 3 or 4 learner due to his speech and hearing impairment.

An important part of the witness' testimony was that when deaf persons feel they are under threatening circumstances or that they are being treated unfairly, they exhibit bad behaviour due to communication gaps. They may attack an individual later if they had been subjected to a group attack. In other circumstances, they may not. This means that the fact that a deaf person may attack their presumed attacker later is subjectively possible.

Where there is a discriminatory utterance, as in this case a person with a speech and hearing impairment will act, depending on who authored the words and how frequent they were uttered.

Professor Hlatshwayo also told the court that fights on love issues are common within this community. It is our view that this is understandable. Here is someone who is generally socially isolated due to communication barriers and discrimination. Suddenly someone sees them, hears them and listens and despite their challenges, professes love. If they believe someone has dimed the only light which was shining in their life, they are likely to react in a disproportionate manner compared to those without a similar impairment. It was in this light that he posited that the accused was grossly provoked by the discriminatory utterance of the deceased as they were very close and his actions are what other people in his circumstances, could have done.

Professor Hlatshwayo's evidence is supported by an article published in the International Journal for Psychotherapy in Africa (9:2) on " Anger Management in Deaf Persons: A Psychotherapy Approach" by Green Albert Ulutorti and Eweni Henry Ikemefuna. They state the following;

> "Deaf individuals may experience anger differently due to various factors such as communication barriers, social isolation and discrimination. Misunderstandings and frustration resulting from communication challenges can contribute to heightened anger levels in deaf individuals."

In an article published by Oxford in the Journal of Deaf Studies and Deaf Education, 2019, 1-11 titled "Emotional Functioning, Positive Relationships and Language Use in Deaf Adults" by Cecilia Penacoba the following is stated.

"In this regard, most deaf children born to hearing parents are raised in an oral language environment (Mitchell & Kartchmer, 2004) which frequently results in language acquisition delays, and, in turn decreased social and psychological functioning. Similarly, most hearing parents of deaf children that adopt sign language as the main way of communicating usually don't master it sufficiently (Fellinger et al, 2012), which may also result in language acquisition delays for the child.

Not matching the deaf child's communication mode may result in poorer mantal health (Brown &Cornes, 2015; Fellinger et al 2012), impaired emotional (Hintermair, 2016, Wiefferink et al 2013), cognitive (Hintermair, 2013), and social functioning (Hintermair, 2016). However, Barker et al (2009) state that it is not a delay in the acquisition of concepts crucial for the development of the child that makes deaf children show greater difficulties in different areas".

We therefore accepted the expert witness evidence as showing that the accused, due to his speech and hearing impediment, is in a *sui generis* position calling for the court not to use an armchair approach in applying the reasonable man test set out in s 239 of the Criminal Law Code.

I have to commend both counsel for their extensive supplementary submissions on the applicable law.

At the international level there is the Convention on the Rights of Persons with Disabilities. It mandates State Parties to take effective and appropriate measures to enable People With Disabilities to attain and maintain maximum independence, physical, mental, social and vocational ability and to ensure their social inclusion.

Fortunately for us, there is a wealth of authorities internationally where the question we are grappling with was settled.

In the case of *Daly v Liverpool Corporation* [1939] 2 All ER 142 it was held that the test for a person with a physical disability is to ask what a reasonable person with that same disability would have done.

In the case of *Fletcher v Aberdeen* (Supreme Court of Washington) it was held that a blind person should be held to the objective reasonable standard of a blind person, not a sighted one.

Further direction is gleaned from the South African case of *Oscar Leornard Carl Pretorious* CC113-2013 wherein the court was of the view that negligence must be tested by a test of a reasonable person of the same background and educational level, culture, sex and race of the accused. The accused has to be viewed as a reasonable person of a particular

group of persons who are in the same circumstances as the accused with the same ability and knowledge.

The approach employed in Zimbabwe in relation to the defence of provocation as provided in s 239 of the Code is set out in the case of *S v Mafusire N* HH 130/2010. It was held therein that in murder cases, there is a two-stage approach. The first stage is to decide whether the accused had the intention to kill when he reacted to provocation. If he did not have the intention to kill, he will not be convicted of murder but only of culpable homicide. If he had an intention to kill, then the court will proceed to the second stage, which is to decide whether the accused himself lost his self-control and killed intentionally in circumstances where even the reasonable person, faced with this extent of provocation, would also have lost self-control. If the accused did lose his self-control and the reasonable person would have done likewise, the accused will have a partial defence and will be found guilty of culpable homicide and not murder.

Applying this test to the facts at hand- it is agreed that the deceased's utterances were grossly provocative on the accused as they cemented a lifelong isolation and discrimination and came from someone, he was close to, sharing everything with including the bed. Due to this the deceased who uttered that "the hearing and the deaf cannot be together," became the recipient of all the accumulated anger and frustration of the deceased's entire life. He could not dissipate his anger through verbal arguments or shouting. All he said in evidence was that the deceased was talking too much on that day and had spent a long time talking orally to his girlfriend, shutting him out. He even suspected that his dear uncle, the deceased had snatched his girlfriend.

The next inquiry is to establish whether the accused intended to kill the deceased. In the case of *S* v *Wairosi* HCM 57/27 it was held that the weapon used, the body part attacked and the severity of the attack show actual intention to kill. In this case the accused used a 2.2kg wheel spanner and targeted the sleeping deceased's face and delivered four successive blows whose result was polytrauma to the head and blunt force trauma which caused the death. Some of the surface wounds were cuts on the left side of the chin, swollen left cheek, multiple mandible and maxilla fractures with some dislodged teeth and cuts on the buccal mucosa.

Whilst demonstrating a clear intention to kill, the accused in his evidence explained that he delivered the four blows in quick succession and did not stop to check after the first

blow what was the effect of his attack. As observed in *S v Mafusire N supra*, the nature of the attack on the deceased and the injuries sustained can only mean that the accused must have lost control of himself but not the intention to kill. Such an attack can only have been perpetrated by someone who was enraged.

This takes us to the final inquiry which, it has been conceded, should be whether a reasonable man with a hearing and speech impairment would have lost self-control as the accused did.

Given the exposition above on how people with such a speech and hearing impairment experience heightened anger levels due to the host of factors already outlined and how they suffer decreased social and psychological function, poorer mental health, impaired emotional, cognitive and social functioning, we find the conduct of the accused in the given circumstance to be in consonance with that of any other person in similar circumstances.

We therefore uphold the defence of provocation as a partial defence to murder.

There is the issue of the argument raised in favour of the accused in the main. It is that the accused cannot be found guilty of murder because the law, in its current state, has never been published in or gazetted in sign language, a format he can understand. It was argued that the accused was therefore unaware of the arising culpability.

Persons born deaf are said to live in an information desert yet legal, moral and social norms are mostly acquired through verbal interaction and education which are structurally inaccessible to the deaf from birth.

Several case authorities were referred to in support of this principle of legality and accessibility such as *Test Phiri* v *The Sate* HH 121-18, *Lambert* v *California* 355 Us 225 (1957), *Media Alliance of Zimbabwe & Anor* v *Minister of Justice, Legal and Parliamentary Affairs N.O & Anor* HH 315/25 *and Mark Gora Charunduka & Anor* v *Minister of Home Affairs* SC 36/2000.

The submissions made by the defence make for some interesting legal discourse but would not be applicable *in casu*. This is because of the accused's own testimony. He said he was educated at Emeral Hill School for the Deaf up to Form 2 level and during that time some of the rules instilled in them were respect and that they should nor fight. He is aware of the attendant consequences as he knows what he did to his uncle was not good or acceptable in the community. According to him this just happened.

The investigating officer confirmed that the accused would also communicate through writing on the ground.

In evidence in chief when asked about whether he knows how laws are published or made accessible to the public, the accused responded that he knows there are laws but does not know how they are technically made. In this, he is like most people, even the hearing. Most people, like him only know the intricacies of the crime committed when they are arrested.

The following day, the accused reported his conduct to his brother and led both the police and his relatives to where he had placed the body.

In the light of this evidence, the main plea of legality and accessibility barring culpability, cannot stand. We therefore dismissed it.

Disposition

Having upheld the defence of provocation as a partial defence to murder as defined in s 239 (1) we make the following order.

1. The accused is found not guilty of murder
2. The accused is found guilty of culpable homicide as defined in s 49 of the Criminal Law Code.

Sentencing

In terms of section 49 of the Criminal Law Code, a person convicted of culpable homicide is liable to imprisonment for life or any definite period of imprisonment or a fine up to or exceeding level 14 or both.

The Third Schedule of the Sentencing Guidelines S I 146/2023 sets the presumptive penalty at 5 years imprisonment for culpable homicide with aggravating factors and 3 years imprisonment for culpable homicide with mitigating factors.

A presumptive penalty is the starting point for the judicial officer to determine the sentence for the offender. In terms of s 5 of the Sentencing Guidelines, judicial officers are allowed to depart from presumptive penalties, in which case the judicial officer must give reasons for departing from the presumptive penalty.

Normal Range of Sentence

In *S* v *Tatenda Migeri & Anor* HH 868/22 MUNGWARI J said:

> "A reading of many other decided cases in our jurisdiction shows that the predominant sentencing trend is imprisonment even where the accused has been found guilty of culpable homicide. It represents a sign of the court's revulsion at the unnecessary loss of life."

Mitigating factors we found to exist

We found that the accused is a first offender. In terms of the Sentencing Guidelines is s 9 (a), this is an important mitigating factor as noted in several case law authorities.

The accused person readily admitted the charge in his warned and cautioned statement. He admitted to assaulting the now deceased 4 times with a wheel spanner on the head whilst sleeping. Though there were no other witnesses he admitted the facts and shortened the trial whilst tendering the limited plea of guilty to culpable homicide.

The accused's demeanor in court showed genuine remorse. Even after assaulting the now deceased, he carried him outside hoping to get assistance and that he could be revived by some fresh air.

It was an agreed fact that the deceased's utterances to the accused were grossly provocative as they were discriminatory and touched on his speech and hearing impairment which had led to language barrier, social isolation and discrimination. This was particularly sensitive to him as this touched on his girlfriend and led to a breakup and came from an uncle he was close to.

Though the accused is aged 36 years now, the expert witness testified that a deaf and mute person has the conceptualization level of a person half his age. Research has shown that such people suffer from decreased social and psychological functioning due to delayed language acquisition. Some scholars point to poorer mental health, impaired emotional, cognitive and social functioning. In the circumstances we considered the accused as a youthful offender who acts immaturely.

This takes me to the clear evidence of the accused's physical impairment. He was born deaf and mute. He gave evidence about his short stint in custody. The other inmates and prison officers communicate orally. No one is able to use sign language. He is socially isolated and cannot participate in interactions and games by inmates. He therefore spends a lot of time sleeping and for eating he just follows others.

In terms of s 21 (4) of the Sentencing Guidelines, the accused falls in the special category of persons with disabilities. We therefore have to be alive to whether he has capacity to cope or comply with the proposed sentence.

Aggravating Factors Found To Exist

We noted that a lethal weapon was used, a 2.2kg wheel spanner but noted that this was an opportunistic weapon which was kept under the bed.

It is also aggravating that the accused targeted the delicate head area at very close range. He checked to see that the deceased was asleep then struck.

A precious life was unnecessarily lost. Life is God given and sacrosanct and even constitutionally protected in section 48 of the Constitution of Zimbabwe (2013).

The Sentence

Both counsels agreed that an effective imprisonment sentence would not serve any meaningful purpose in this case as the accused would not be fully integrated in any rehabilitation and correctional programs but would be just eating and sleeping.

Counsel for the accused prayed for a wholly suspended sentence where he can do community service in a deaf community or institutions that handle such people.

Counsel for the state was agreeable to this and proposed a 2 years sentence.

Due to the paucity of such institutions, both counsel were tasked to identify one such institutions and seek their willingness to have the accused do community service there.

The court agrees with such proposal in form but in order to have a deterrent effect on the accused, part of the sentence should be suspended on condition of good behaviour. This will also send a message that even though the court will take into account, one's physical impairment, it will not generally treat offenders with kids' gloves.

As to the choice of institution we believe we have an opportunity to ensure that the offender particularly need not be just attached to an institution that is attended by deaf children. There is need for specialized behavioral, psychological and corrective interventions tailored to the offender.

Deaf Zimbabwe Trust is a voluntary organization that promotes the rights ands interests of the Deaf and Hard of Hearing People in Zimbabwe. It is an organisation catering for the public.

If the offender is placed with them for community service he will get accessible communication support, including, structured rehabilitative and behavioral programmes adopted for deaf persons working with a social worker who is deaf. He will also get psychosocial support delivered in sign language.

Above all DZT has to allocate work for him to carry out.

The accused is sentenced to:

1. Three years imprisonment of which one year imprisonment is suspended for 5 years on condition that the accused does not, within that time, commit an offence in which violence on the person of another, is involved.
2. The remaining 24 months imprisonment is suspended on condition that the accused performs 420 hours of community service at Deaf Zimbabwe Trust on the following conditions:

a) Community service starts on 9 March 2026 and must be completed within 12 weeks of that date.
b) Community service shall be performed between the hours of 0800hrs to 1300hrs and 1400hrs to 1600hrs on Mondays to Fridays excluding public holidays and to the satisfaction of the person in charge of the institution whom the court has granted authority to grant the offender leave of absence on a particular day (s) or during certain hours for good cause shown.

National Prosecuting Authority, Counsel for the State
Shava Law Chambers, Accused's Legal Practitioners.

c) Any such leave shall not count as part of community service performed

MUCHAWA J:.....